

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Ishmael Kamara of Bopolu Central Prison, Gbarpolu
County, Liberia.....Appellant

Versus

Republic of Liberia by and thru the Ministry of Justice...
.....Appellee

GROWING OUT OF THE CASE:

Republic of Liberia by and thru the Ministry of Justice...
.....Plaintiff

Versus

Ishmael Kamara of Bopolu Central Prison, Gbarpolu
County, Liberia.....Defendant

APPEAL

CRIME: RAPE

Heard: November 16, 2021

Decided: February 17, 2022

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT

On February 17, 2009, the Grand Jury of the 16th Judicial Circuit for Gbarpolu County, Republic of Liberia sitting in its February Term, A.D. 2009 returned a true bill charging the appellant herein, Ismael Kamara, with the commission of the crime of rape. The indictment emanating therefrom charged the appellant as follows:

INDICTMENT

The Grand Jurors for Gbarpolu County, Republic of Liberia, upon their oath do hereby find, more probably than not, that the defendant, Ishmael Kamara, of Weasua Town, Gbarma District, Gbarpolu County, Republic of Liberia, committed the crime of rape, a capital

offense of the first degree, against the within named private prosecutrix ten (10) years old of the same address, in manner and form as follows, to wit:

a) That on Friday, November 10, 2008, at about 6:30 p.m., the defendant, Ishmael Kamara whose age is 27 years born March 15, 1992, took little victim [named withheld for the protection of victim's privacy] (private prosecutrix) in his (defendant's) room and forcibly put his [male private part inside the private part] of little victim, and according to private prosecutrix, while she was crying the within named defendant put cloth on the little victim's mouth. That after he (defendant) had forcibly sexed private prosecutrix, he told her that if she (private prosecutrix) should tell anyone he (defendant) would kill her.

b) Plaintiff further explained that defendant seriously threatened her if ever she should tell her parents or anyone about what transpired between the defendant and her.

Contrary to 4LCLR, Title 26, Section of the New Rape Law of Liberia 14.70 (1), (b), and 4LCLR, Title 26, Section 14.70 (a) (i) of the Statutory Laws of the Republic of Liberia; and peace and dignity of the Republic of Liberia.

The Republic of Liberia will [produce] the following witnesses:

1. Little girl (victim)
2. Victim's sister
3. Victim's mother
4. Medical report
5. Police Officer/ Police Charge Sheet
6. Etc. etc. etc.

Submitted by :
Atty. Stephen KerWilliam
County Attorney
16th Judicial Circuit
Gbarpolu County, Liberia

A true bill from the Grand Jury, sitting in its November, A.D. 2009,
Term of Court, Gbarpolu County, Republic of Liberia

Yarkowah K. Zor

Foreman, Grand Jury, Gbarpolu County, Republic of Liberia

Filed: Feb. 17, 2009

Clerk, 16th Judicial Circuit, Gbarpolu County, Republic of Liberia

Pursuant to an application by the State to have this matter advanced on the trial docket, the trial commenced on February 26, 2009 under the gavel of His Honor William K. Ware of sainted memory with the arraignment of the appellant and he pleaded 'not guilty'. A trial jury was thereafter empaneled. The appellee/Prosecution fielded five witnesses while the appellant/defendant fielded himself as the lone witness during the trial. At the close of evidence by both side and after the empaneled jury was charged by the court, a unanimous verdict of guilty was returned by the panel after deliberation. The appellant/defendant having failed to file any post trial application, the court proceeded to enter its final ruling adjudging the appellant guilty of statutory rape – a first degree felony – and sentenced the appellant/defendant to life imprisonment. The appellant/defendant excepted to this ruling and announced an appeal to this Court. Predicated thereupon, the appellant/defendant filed a three-count bill of exceptions as follows:

1. Your Honor erred when you denied the appellant's motion for judgment of acquittal.
2. And also because Your Honor erred when you denied the appellant's motion for a new trial and you confirm[ed] the illegal verdict of guilty when in fact the evidence adduced at the trial by the prosecution was contrary to said verdict.
3. That Your Honor further erred when you conducted the entire trial in an irregular manner as established by the minutes of court.

As to counts one and two of the bill of exceptions, a search of the records shows that the appellant/defendant neither file a motion for judgment of acquittal nor a motion for a new trial which were denied by the trial judge. This contention not been supported by the records, is not a proper subject of review by this court. It is the law in vogue in this jurisdiction that for an error to be assigned for appellate review, it must be established by the records that the court below had made an order, a decision, ruling or comment to which the appellant objects. This Court has consistently held that it can only take cognizance of matters appearing in the records in the lower court and certified to the Supreme Court. Thus, accepting or endorsing the contention of the appellant in the absence of such records or evidence to support the allegation, would be tantamount to indulging in and endorsing speculation and conjecture, an act this Court has said repeatedly it is not prepared to countenance. This Court has also held that it cannot and will not premise its decision upon or indulge in speculative allegations. *Universal Printing Press v. Blue Cross Insurance Company, Supreme Court Opinion, March Term, A.D. 2015*

The appellant has assigned as the third error the manner of the proceedings in the court below which in the words of the appellant "the trial judge conducted the trial in an irregular manner". We observe again that the appellant failed to state with specificity or particularity the irregularities that occasioned the trial proceedings. Our laws require that a bill of exceptions must state with particularity and specificity the errors identified, and the exceptions noted by the appealing party. *MIM Timber Corporation v. Johnson 31 LLR 145 (1983), C. F. Wilhelm Jantzan v. Johnson 31 LLR 343 (1983), Wiah v. Republic, 38 LLR 385 (1997), Universal Printing Press v. Blue Cross Insurance Company, Supreme Court Opinion, March Term, A.D. 2015, Jerry Korlubah et al v. R. L. Supreme Court Opinion, March Term A. D. 2020*. However, this being a criminal case and the appellant having referenced the minutes of the trial proceedings, we shall endeavor to scrutinize the records for any irregularities couched therein.

The records revealed that the appellant was indicted by the Grand Jury of Gbapolu County during the February Term, A.D. 2009. On February 26, 2009, the appellant was arraigned to ascertain his plea and he pleaded not guilty to the crime charged in the indictment. Thereafter, a trial jury was empaneled and trial commenced. The state produced five witnesses as indicated in the indictment. The little victim first

testified for the prosecution; she told the court and jury that she and her sister sat in front of the house; that she told her sister that she was going to sleep (bed); that the man in the dock called her in the room; that he locked the room door and tied her mouth; that he removed her clothes; that he inserted his penis inside her; that when he got through, he put her clothes back on her; that he said to her if she tells anyone, he will kill her; that she did not tell anyone because she was afraid; that she felt sick while going to school; that she could not sit down; that the sister took her to a clinic, but the sickness could not abate; that her sister sent for her mother who took her to Island Clinic located on Busrod Island, Montserrado County; that they bathed her at the Island Clinic; that her mother asked her if man had done "bad thing" to her and she answered yes; that they wrote the medical report; that they came back to Weasua and informed the police; that the police arrested the man, appellant herein and detained him; that the man called Papa Sahr Youla came to her mother and begged the mother that he (Papa Sahr Youla) will pay the expenses to let the matter rest, but that the mother refused.

The Prosecution's second and third witnesses, Fatumata Kamara (sister and guardian of the victim) and Lorpu Berkor (mother of the victim), respectively, corroborated the testimony of the victim.

The Prosecution's fourth witness, Dr. Joseph Dwahan, a medical doctor serving as the County Health Officer testified that the victim was seen and examined at the Island Hospital in Monrovia by a physician assistant; that the examination shows that there was a small lesion below the vulva; that there was some rupture of the hymen; and that all other parts of the victim were normal.

The Prosecution fifth witness, James Keh, an officer of the Liberia National Police, testified that the appellant was arrested on November 30, 2008 on alleged crime of rape based on the complaint of the private prosecutrix; that the victim told the police that the appellant took her to a room and had sex with her; that the appellant denied the allegation, but offered to do everything to treat the victim; and that the police being aware that the crime of rape cannot be resolved by the police, charged the appellant and forwarded him to court.

The Prosecution rested by admitting into evidence the testimonies of the witnesses, State exhibit P/1, same being the black cloth allegedly used by the appellant to allegedly hush his victim, State exhibit P/2, that is the medical report and State exhibit P/3, the police charge sheet in bulk.

The records also show that when the appellant took the witness stand, he testified that he moved out of the house where the rape is said to have taken place on November 21, 2008 and therefore he could not have committed the act he is accused of on the date and time he is said to have committed the act; that he was invited by the police who confronted him with the medical report showing that the victim had been sexually tempered with, and a statement of the victim identifying him as the perpetrator of the act ; that he denied the accusation that he raped the little girl; that the sister of the victim in whose house he was staying is his stranger mother, so he could not have done that to the family; and that he denied ever sending Sahr Youla to compromise the case.

We note that the appellant affirmatively interposed the defense of *alibi* when he testified on his behalf. The plea of *alibi* is an affirmative plea and is controlled by the same principle of law that governs affirmative averments laid in an indictment. It has been frequently held that the accused should be required to establish his *alibi* by the same measure of proof as that by which the prosecution is required to show his guilt. *Alibi* means that at the time of commission of the crime charged in the indictment defendant was at a different place so remote or distant or under such circumstances that he could not have committed the offense. It is a physical circumstance and derives its entire potency as a defense from the fact that it involves the physical impossibility of guilt of the accused. In a criminal case it is incumbent upon the state to prove, as a part of its case, that the defendant was at the scene of the crime, and any evidence that he was elsewhere, at the time, is competent and appropriate to weaken or destroy the proof which the state must offer. From this standpoint an *alibi* is not only a legitimate but may be a very complete defense. In fact, it may be the only means which an innocent man may have of avoiding a conviction. It affords, when established, the most perfect, physically conclusive evidence of his innocence. *Yancy v R.L.*, 27 LLR 365 (1978) ; *Ben v R.L.*, 31 LLR 107 (1983)

In the instant case, could it be sufficient for the appellant to testify that on November 21, 2008 he had moved out of the house where the rape was reported to have taken place? We note that the indictment alleged that the rape took place on November 10, 2008. So, how does the appellant's uncorroborated testimony explain away the possibility of he not been present on November 10, 2008 at the crime scene? Why the appellant's boss man who he said paid his relocation

expenses not testify in the appellant's behalf? Where was the appellant on night of November 10, 2008? Why did the appellant want to pay the victim's medical expenses? Why Sahr Youla did not testify to rebut the prosecution's evidence that the appellant sent him to negotiate a compromise of the case? These are questions that appellant was under a duty to provide answers for. It was not sufficient for the appellant to plead *alibi*, but, the law requires that the onus was on him to prove that it was impossible for him to be present in the place and time the crime is said to have been committed? This Court, in *Passawe v. R. L. 24 LLR 516 (1976)*, that is forty-six years ago, espoused that the uncorroborated testimony of a person accused of crime is insufficient to acquit, especially when the evidence against him is clear and cogent. We affirm.

The records further show that on February 27, 2009, final argument, pro et con, was entertained by the trial judge and subsequent thereto, the trial jury retired in its room of deliberation and later returned a unanimous verdict of guilty against the appellant. The appellant excepted to the verdict, but failed to file any post trial motion within the time stipulated. On March 4, 2009, four days after the returned of the verdict, the trial court entered final ruling affirming the unanimous verdict of guilty as returned by the jury. The appellant excepted to the final ruling and announced an appeal to this Court.

This Court says that having chronologically dissected the trial proceedings, it is convinced that all the elements of conviction were met in the trial of the appellant contrary to the error that the appellant assigned for our review. The records of this case shows, (a) that the offense was correctly charged in a valid indictment; (b) that only legal evidence was placed before the trier of facts to convict the appellant; and (c) that the evidence examined satisfactorily established the guilt of the appellant beyond a reasonable doubt. *Bility et al v. R. L. Supreme Court Opinion, October A. D. 2014 supra*

Moreover, the Court notes that the trial of the appellant was done by a petit jury drawn from the community with the participation of the appellant in keeping with law. The jury is the trier of facts, and the judge of the weight and worth of the evidence and the credibility of witnesses. The sufficiency of evidence to prove the

guilt, or any evidentiary fact looking thereto, is a matter within the province of the jury. *Living Counsellor et al v. R. L., Supreme Court Opinion, October Term, A. D. 2008* In the absence of a showing that the verdict of the trial jury is contrary to the weight of evidence, this Court will not disturb the verdict of the trial jury and final ruling of the trial court. And so we hold.

WHEREFORE AND IN VIEW OF THE FOREGOING, the final ruling of the trial court adjudging the appellant guilty of rape is affirmed. Clerk of this Court is ordered to send a mandate to the court below to resume jurisdiction over this case and give effect to the Judgment of this Opinion. AND IT IS HEREBY SO ORDERED.

Counsellors Tobey J. Raynes and B. Rachell Yabah Duobah of the Office of Public Defenders of Liberia appeared for the appellant. Counsellors Lafayette B. Gould, Sr. Isaac L. George and Wesseh Alphonsus Wesseh, Sr. of the Ministry of Justice appeared for the appellee.